



CHAPTER xxxv.

An Act to authorise the mayor aldermen and citizens of the city of Salford to acquire and use lands in the city for certain purposes to make further and better provision for the local government health improvement and finances of the city to confer further powers upon the Corporation with respect to their several undertakings and in respect of other matters and for other purposes. [30th July 1948.]

WHEREAS the city of Salford (hereinafter referred to as "the city") is a county borough under the government of the mayor aldermen and citizens of the city (hereinafter referred to as "the Corporation") acting by the council of the city:

And whereas it is expedient that the Corporation should be empowered to acquire compulsorily certain lands in the city for the purposes of or in connection with their transport undertaking and that the provisions contained in this Act with respect to the development of those lands and the use of certain other lands in the city should be enacted:

And whereas it is expedient that further and better provision should be made for the good government health and improvement of the city and that the powers of the Corporation in regard thereto should be enlarged as by this Act provided:

And whereas it is expedient that further and better provision should be made as by this Act provided with regard to the finances of the Corporation the superannuation of their officers and servants and the recovery of rates:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be attained without the authority of Parliament:

23 & 24 Geo. 5. c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

And whereas a plan showing the lands which may be acquired compulsorily by the Corporation under the powers of this Act together with a book of reference to the said plan containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of all such lands and describing the same has been deposited with the town clerk of the city and such plan and book of reference are in this Act respectively referred to as the deposited plan and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Salford Corporation Act 1948.

Act divided
into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Streets buildings sewers &c.

Part IV.—Smoke abatement.

Part V.—Sale of coke coal &c.

Part VI.—Financial.

Part VII.—Miscellaneous.

Part VIII.—General.

Incorporation
of Lands
Clauses Acts.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exceptions and modification:—

8 & 9 Vict.
c. 18.

(a) Sections 127 to 132 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) and section 5 of the Lands Clauses Consolidation

Acts Amendment Act 1860 are not incorporated with this Act;

PART I.
—cont.

23 & 24 Vict.
c. 106.

- (b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith or by the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpretation.

26 Geo. 5. &
1 Edw. 8. c. 49.

(2) In this Act unless the subject or context otherwise requires—

“the city” means the city and county borough of Salford;

“the Corporation” means the mayor aldermen and citizens of the city acting by the council of the city;

“the town clerk” “the surveyor” “the medical officer” and “the sanitary inspector” mean respectively the town clerk the surveyor the medical officer of health and any sanitary inspector of the city;

“the Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and the Town and Country Planning Act 1947;

9 & 10 Geo. 5.
c. 57.
10 & 11 Geo. 6.
c. 51.

“public service vehicle” has the same meaning as is assigned to that expression by the Road Traffic Act 1930;

20 & 21 Geo. 5.
c. 43.

“the transport undertaking” means the public service vehicle undertaking for the time being of the Corporation and any other passenger transport service which the Corporation may for the time being be authorised to provide;

“the Act of 1933” means the Salford Corporation Act 1933;

23 & 24 Geo. 5.
c. lxxxix.

“the Minister” means the Minister of Health;

“daily penalty” means a penalty for each day on which an offence is continued by a person after conviction therefor;

“smoke” includes soot ash grit and gritty particles;

“the general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the city;

PART I.
—cont.

“statutory borrowing power” includes any power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Local Government Act 1933;

“statutory securities” means any securities in which trustees are for the time being authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any security of the Corporation.

38 & 39 Vict.
c. 83.

PART II.

LANDS.

Power to
acquire lands
for purposes
of transport
undertaking.

5. Subject to the provisions of this Act the Corporation may enter upon and take and may hold and use for the purposes of or in connection with the transport undertaking all or any of the lands in the city which are delineated on the deposited plan and described in the deposited book of reference.

Correction of
errors in
deposited
plan and
book of
reference.

6.—(1) If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the place in which the lands are situate for the correction thereof.

(2) If on any such application it appears to the justices that the omission or misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described.

(3) Any such certificate or a copy thereof shall be deposited with the town clerk and thereupon the deposited plan and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the lands in accordance with the certificate.

(4) Any such certificate or copy deposited under this section shall be kept by the town clerk with the other documents to which the same relates.

7. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings authorised by this Act to be taken and used or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Power to enter upon property for survey and valuation.

8.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished.

Extinction of private rights of way.

(2) Provided that the Corporation shall make compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

9. The powers of the Corporation for the compulsory purchase of lands under the powers of this Act shall cease on the first day of October one thousand nine hundred and fifty-one.

Limit of time for compulsory purchase of lands.

10.—(1) The Corporation may with respect to any lands acquired by them under this Act—

Development and use of lands acquired under this Act.

- (a) divert alter and rearrange the public streets and ways therein and thereover and the watercourses sewers drains pipes cables wires tubes channels and other works in or under any such streets or ways;
- (b) lay out and construct new streets or ways thereon;
- (c) adapt and use such lands or any part thereof as a station for public service vehicles operated by the Corporation or by any other person with whom the Corporation have entered into an agreement for the joint provision or running of public service vehicles and do all such acts and erect and maintain all such apparatus and appliances as may be necessary for that purpose;
- (d) provide and erect on such lands or any part thereof and maintain all such buildings offices waiting rooms shelters cloakrooms lavatories conveniences and other accommodation as may be necessary or convenient for the purposes of the transport undertaking;

PART II.
—cont.

- (e) make reasonable charges for the use of or let on hire to any person any such lands or any accommodation thereon provided under this section or any part of such lands or accommodation;
- (f) set apart any part of the said lands as an open space or public garden and lay out and maintain the same;
- (g) make byelaws as to the use of any such lands or any such accommodation as is open to the public.

(2) Any person contravening the provisions of any byelaws made under subsection (1) of this section shall be liable to a penalty not exceeding two pounds.

15 & 16 Geo. 5.
c. 71.

(3) For the purposes of section 68 of the Public Health Act 1925 any lands acquired under this Act shall be deemed to be lands which may be lawfully appropriated for the purpose of providing a parking place or parking places for vehicles and for the purposes of section 90 of the Road Traffic Act 1930 any parking place provided by the Corporation by virtue of the provisions of this subsection shall be deemed to be a parking place provided by them in pursuance of the powers conferred by the said section 68 which may be used by public service vehicles and the provisions of the said section 90 (other than subsections (1) (7) and (9) thereof) shall apply accordingly.

Power to stop
up streets.

11. The Corporation may stop up the whole or such portion or portions as they may from time to time think fit of the following streets and part of a street:—

Avery Street;

Lomax Street;

so much of Yorkshire Street as is situate between Worsley Street and the junction of Yorkshire Street with Browncross Street;

and thereupon all rights of way over the street or the portion thereof stopped up shall be extinguished but the Corporation shall not stop up any street or portion thereof unless they are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of those houses and lands may otherwise agree:

Provided that the Corporation shall make compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

12.—(1) Where in exercise of the powers conferred by the section of this Act of which the marginal note is “ Power to stop up streets ” any street specified in that section or any portion of such a street is stopped up the following provisions shall unless otherwise agreed in writing between the Corporation and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such street or portion of a street at the time of such stopping up:—

- (a) The Postmaster-General shall have power to remove the line so however that the said power shall not be exerciseable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the Corporation of his intention to remove the line or that part thereof as the case may be;
- (b) The Postmaster-General may by notice to the Corporation in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) The Postmaster-General shall be entitled to recover from the Corporation the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require;
- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Corporation and the provisions of the Telegraph Acts 1863 to 1943 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(2) As soon as the whole of the said streets or any of them or any portion thereof has been stopped up the Corporation shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) In this section the expression “ telegraphic line ” has the same meaning as in the Telegraph Act 1878.

41 & 42 Vict.
c. 76.

PART II.

—cont.

For protection
of electricity
boards.

13. For the protection of the British Electricity Authority and the North Western Electricity Board (each of whom are in this section referred to as "the electricity board") the following provisions shall notwithstanding anything contained in this Act and unless otherwise agreed in writing between the Corporation and the electricity board apply and have effect (that is to say):—

(1) In this section unless the subject or context otherwise requires the expression "apparatus" means all or any electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to or under the control of the electricity board:

(2) Not less than twenty-one days before the Corporation—

(a) divert alter or rearrange any public streets or ways in or under which any apparatus is for the time being situate or divert alter or rearrange any such apparatus under the section of this Act of which the marginal note is "Development and use of lands acquired under this Act"; or

(b) stop up any street or part of a street in over or under which any apparatus is for the time being laid or placed under the section of this Act of which the marginal note is "Power to stop up streets";

the Corporation shall give to the electricity board notice in writing of their intention so to do accompanied by a plan and section of any intended alteration of the apparatus and if it is reasonably necessary so to do the electricity board may and (if so required by the Corporation) shall—

(i) remove the apparatus to and relay the apparatus in over or under the highway (if any) to be substituted for the street or part of a street so stopped up or in such other position as may be reasonable; or

(ii) provide and lay or place in over or under such substituted highway or in such other position as may be reasonable other apparatus in lieu of the existing apparatus:

(3) Whenever by reason or in consequence of the exercise by the Corporation of the powers of the sections of this Act of which the marginal notes are respectively "Development and use of lands acquired under this Act" and "Power to stop up streets" any apparatus (other than apparatus for which new apparatus has been substituted at the expense of the Corporation

45 & 46 Vict.
c. 56.

under the provisions of this section) is rendered derelict useless or unnecessary the Corporation shall forthwith pay to the electricity board such a sum as may be agreed between the electricity board and the Corporation or as failing agreement may be determined by arbitration to be the value of the apparatus so rendered derelict useless or unnecessary and such apparatus shall upon such payment being made become the property of the Corporation:

- (4) The Corporation shall repay to the electricity board the reasonable expenses (hereinafter in this section referred to as "the said expenses") incurred by the electricity board of and in connection with the removal and relaying of any apparatus and the provision and laying of new apparatus under this section and the reasonable costs of and incidental to—

(i) the cutting off of any apparatus from any other apparatus; and

(ii) any other work or thing rendered reasonably necessary in consequence of any such removal and relaying or laying of apparatus as aforesaid:

Provided that if—

(a) the electricity board provide and lay new apparatus in substitution for their existing apparatus and the existing apparatus was laid or placed more than seven and a half years before the laying of such new apparatus; or

(b) the said expenses are enhanced by—

(i) the substitution for the existing apparatus of apparatus of greater dimensions (other than length) or of greater capacity or apparatus of improved type; or

(ii) the laying or placing of apparatus at a depth of cover greater than that of the existing apparatus except where and to the extent to which such greater depth of cover is reasonably necessary to avoid interference with other underground apparatus works or structures;

the electricity board shall themselves bear (in the case referred to in paragraph (a) of this proviso) such proportion of the said expenses as represents the estimated saving of expense to the electricity board resulting from the consequent deferment of the date at which the existing apparatus would have required to be renewed and (in the case referred to in paragraph (b) of this proviso) such proportion of the said expenses as represents the amount by which the

PART II.
— cont.

said expenses exceed the cost which would have been incurred if the dimensions (other than length) or the capacity of the apparatus so laid or placed had been the same as those of the original apparatus or if the apparatus had been laid or placed at the same depth of cover as the existing apparatus:

- (5) Any difference which may arise between the Corporation and the electricity board under this section (other than a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to a single arbitrator to be agreed upon between the parties to the difference or in default of such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

For protection
of British
Transport
Commission.

14. For the protection of the British Transport Commission (hereinafter referred to as "the commission") the following provisions shall unless otherwise agreed in writing between the Corporation and the commission apply and have effect:—

- (1) If the Corporation shall in pursuance of the powers of this Act purchase or acquire the lands of the commission numbered on the deposited plans 11 in the city there shall be reserved to the commission out of the conveyance thereof to the Corporation so much of the viaduct carrying the Liverpool and Manchester railway of the commission as is situated in on or over the said lands together with all such easements and rights in over and under the said lands as the commission may require for the purposes of maintaining renewing reconstructing or altering the said viaduct:
- (2) No building or other structure shall at any time be erected on the said lands under the said viaduct or within a distance of six feet from any part of the said viaduct including the foundations thereof.

Appropriation
of lands in
city for
educational
purposes.

15.—(1) Notwithstanding anything contained in any deed conveyance or covenant to the contrary the Corporation may appropriate and use for the purposes of or in connection with the establishment and maintenance of a Roman Catholic school or the discharge of any of their functions under the Education Acts 1944 and 1946 or any Act amending or extending those Acts all or any part of the lands in the city containing ten thousand and twenty-four square yards or thereabouts and delineated and shown by a pink colour on the signed plan and the appropriation and use of the said lands

or any part thereof for the purposes aforesaid shall be deemed not to be in breach of any such deed conveyance or covenant.

PART II.
—cont.

(2) For the purposes of this section “ the signed plan ” means the plan signed in triplicate by the Right Honourable Lord O’Hagan the chairman of the committee of the House of Lords to which the Bill for this Act was referred of which plan one copy has been deposited in the Parliament Office of the House of Lords one copy in the Committee and Private Bill Office of the House of Commons and one copy with the town clerk.

PART III.

STREETS BUILDINGS SEWERS &C.

16.—(1) In any street not being a highway repairable by the inhabitants at large the Corporation may execute such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves defray the cost of the repairs out of the general rate fund:

Urgent repairs
of private
streets.

Provided that the cost of the repairs executed in any street in any year under this section shall not exceed ten pounds per one hundred yards of the length of the street.

(2) The exercise by the Corporation of their powers under this section shall not prejudice their powers under any statutory provision for the time being in force in the city relating to private street works or private improvement expenses or under section 19 of the Public Health Acts Amendment Act 1907.

7 Edw. 7.
c. 53.

17. If—

- (i) any owner of land fronting adjoining or abutting on a street within the meaning of the Private Street Works Act 1892 and situate in the city conveys sells leases or otherwise disposes of the part or any portion of the part of that land which fronts adjoins or abuts on that street; and
- (ii) any expenses of works executed by the Corporation under the Private Street Works Act 1892 in or in relation to that street are apportioned on such part or portion of that land; and
- (iii) the Corporation are unable to recover such expenses in whole or in part from the person to whom such part or portion of that land was conveyed sold leased or disposed of or by the sale of such part or portion of that land; and

As to evasion
by owners of
private street
works
expenses.
55 & 56 Vict.
c. 57.

PART III.
—cont.

(iv) a court of summary jurisdiction is satisfied that such conveyance sale lease or disposal was intended for the purpose of evading the payment of any expenses under the Private Street Works Act 1892;

then such expenses or so much thereof as has not been recovered by the Corporation may to such extent as the court may determine be recovered from that owner in the same manner as expenses of the execution of works under the Private Street Works Act 1892 may be recovered as though he had not made such conveyance sale lease or disposal and as though the said amount of the said expenses had been apportioned on the land of that owner which before such conveyance sale lease or disposal was made fronted adjoined or abutted on such street.

Height of
chimneys.

18.—(1) Every chimney erected in the city after the passing of this Act for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any buildings used for manufacturing or other purposes shall within such time as may be specified in that behalf in a notice in writing given by the Corporation to the owner of such chimney be raised to such height measured from the level of the centre of the street nearest thereto as the Corporation shall reasonably require having regard to the use of such chimney the position of dwelling-houses or other buildings near thereto the description of such buildings the levels of the neighbouring ground and any other condition requisite for consideration in determining such height and the Corporation may if they think fit contribute towards the cost of raising the chimney to comply with any such requirement:

10 & 11 Geo. 5.
c. 80.

Provided that before exercising the powers conferred by this section in relation to any chimney situated within one mile of an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920 or any Act amending replacing or consolidating that Act the Corporation shall obtain the consent of the Minister of Civil Aviation.

(2) Any person who shall offend against any provision of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Recovery of
expenses of
watching
dangerous and
dilapidated
buildings.

19. Where it appears to the Corporation that any building or structure in the city or any part of any such building or structure is in such a condition as to be dangerous to persons in such building or structure or any adjoining premises or using any street upon which such building or structure abuts the Corporation may employ and pay watchmen and do all such other acts as may be necessary to watch such building or structure and may recover the expenses reasonably incurred by them in so doing from the owner of the building

or structure and such expenses shall until recovered be a charge on such building or structure and the site thereof and on all estates and interests therein:

PART III.
—cont.

Provided that the Corporation shall forthwith give to the owner of any building or structure notice that they propose to employ and pay watchmen or to do any other act in the exercise of the powers of this section to watch such building or structure.

20. The powers of the Corporation of making byelaws under section 6 (Byelaws as to working-class houses) of the Housing Act 1936 for the registration and inspection of houses let in lodgings shall extend so as to enable them to make such byelaws with respect to houses let in lodgings whether such houses are or are not occupied or are or are not of a type suitable for occupation by persons of the working class:

Byelaws as to houses let in lodgings.
26 Geo. 5. &
1 Edw. 8. c. 51.

Provided that for the purposes of any byelaws made under the said section as extended by this section where any house has been let in lodgings without the consent in writing of the owner of such house the person so letting such house shall be deemed to be the owner.

21.—(1) The Corporation may by notice require the owner or occupier of any premises or place used for any exhibition performance amusement game or sport to which the public are admitted on payment of a charge for admission to provide to the reasonable satisfaction of the Corporation and thereafter to the like satisfaction maintain in a suitable position such numbers of sanitary conveniences for the use of the public resorting to such premises or place as may be reasonable.

Provision of sanitary conveniences at places of public exhibitions &c.

(2) If any person fails to comply with a notice served on him under this section within such period not being less than twenty-eight days after the date of the service of the notice as may be specified therein he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

22.—(1) Before commencing to demolish any premises in the city the owner of such premises shall give not less than seven days' notice in writing to the Corporation of his intention so to do and the Corporation if it is reasonable so to do having regard to all the circumstances of the case may within seven days after the receipt of such notice serve a counter-notice upon such owner requiring him to the satisfaction of the Corporation either—

Sealing of drains and sewers before demolition of premises.

(a) to seal any sewer or drain on in or under the site of such premises; or

PART III.
—cont.

(b) to take up and remove any such sewer or drain and seal any other sewer or drain with which such first-mentioned sewer or drain may be connected; and thereupon such owner shall comply with any such requirement.

(2) Any such owner as aforesaid shall to the satisfaction of the Corporation fill in make good and restore the surface of the ground disturbed by or interfered with by the execution of any works under subsection (1) of this section if under the circumstances of the case it is reasonable so to do.

(3) If subject as aforesaid any such owner fails—

(a) within seven days from the receipt of any such counter-notice as is referred to in subsection (1) of this section to comply with any requirement contained in such counter-notice; or

(b) within seven days from the receipt of a notice in that behalf from the Corporation requiring him so to do to comply with the provisions of subsection (2) of this section;

he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings and the Corporation may in addition to and without derogation from their right to recover any such penalty as aforesaid enter into and upon the said premises and may therein thereon or thereunder execute all such works and do all such acts and things as may be necessary to comply with any such requirement and may recover the cost reasonably incurred by them in so doing from such owner.

Apportion-
ment to
frontagers
of expenses of
construction
of sewer before
land became
a street.

23.—(1) Where the Corporation have incurred expenses in constructing after the passing of this Act a length of sewer in or under land within the city and that land has subsequently become a street (whether repairable by the inhabitants at large or not) then subject to the provisions of the next succeeding section of this Act the expenses so incurred so far as they do not exceed the sum authorised by that section shall be apportioned by the Corporation on the premises fronting adjoining or abutting on the street according to the frontages of the respective premises.

(2) Where on the construction of the length of sewer compensation became due to the owner of any land in on or over which the length of sewer was constructed in respect of the damage he sustained by reason of such construction and any sum was set off against such compensation on account of the value of land belonging to such owner having been enhanced by the construction of the length of sewer this section shall

not apply to the length of sewer or to such part thereof as was constructed in on or over such land as aforesaid.

PART III.
—cont.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Corporation and the owner of the land.

24.—(1) The sum apportionable under the last preceding section of this Act shall not exceed the sum certified by the surveyor to be at the time the average cost per lineal yard of providing a sewer having an internal diameter of nine inches in a private street in the city multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question. Provisions applicable to last preceding section.

(2) As soon as the apportionment has been made the Corporation shall serve on the owners of the several premises affected notice in writing of the sums respectively apportioned to them and the notice shall state the right of appeal hereinafter conferred.

(3) Any owner on whose premises any sum has been apportioned shall be entitled within fourteen days of the service upon him of such notice as aforesaid to appeal to a court of summary jurisdiction against the amount of the sum so apportioned and may on such appeal dispute the correctness of the surveyor's certificate.

If the court finds that the certificate of the surveyor is erroneous the court shall order the revision of the sums apportioned not only to the appellant but also to the owners of the other premises affected.

(4) Whenever a new building (other than a building not requiring a foul water drainage system) is erected on any premises fronting adjoining or abutting on the street or part of the street after the date when the street was laid out the sum apportioned on those premises shall be recoverable to an extent proportional to the frontage on the street or part of a street of the site of and the land occupied with the new building:

Provided that where the drains of such new building are at the time of its erection made to connect with a sewer other than the sewer the expenses of the construction of which are apportioned no sum shall be recoverable in respect of the building unless and until the drains thereof are connected with the last-mentioned sewer.

For the purposes of this subsection—

(a) a building shall be deemed to be a new building erected after the date in question unless the erection of the building was completed before that date;

PART III.
—cont.

(b) any such re-erection conversion or extension of a building as is mentioned in the schedule to this Act shall be deemed to be the erection of a new building.

15 & 16 Geo. 5.
c. 22.

(5) The sum apportioned on any premises shall notwithstanding that no part thereof is immediately recoverable be treated as a local land charge for the purposes of the Land Charges Act 1925 and where part thereof has become recoverable the balance shall be so treated.

(6) No interest shall be chargeable on any apportioned sum or any part thereof until it becomes recoverable.

(7) If any person from whom an apportioned sum or any part thereof becomes recoverable proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum so recoverable is payable the amount recoverable is disproportionate to the benefit accruing to the premises the Corporation or on appeal a court of summary jurisdiction may remit such part of that sum as they may think just but in such case if another new building is subsequently erected on the land occupied with the first-mentioned building the sum remitted or such part thereof as is proportional to the frontage of the site of and land occupied with that other building shall become recoverable.

(8) Where under this section any sum becomes recoverable in respect of any premises that sum together with interest from the date of service of a demand therefor may be recovered either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt by the Corporation from the person who is the owner of the premises at the date when a demand for payment is served and as from that date that sum and interest accrued due thereon shall until recovered be a charge on the premises and on all estates and interests therein.

As to evasion
by owners of
sewerage
expenses.

25. If on a complaint by the Corporation to a court of summary jurisdiction it is proved to the satisfaction of the court—

- (i) that the owner of any land has conveyed sold leased or otherwise disposed of a portion of the land; and
- (ii) that by reason of such disposition any part of the land has ceased to be or has not become land fronting adjoining or abutting on a street within the meaning of the section of this Act of which the marginal note is “ Apportionment to frontagers of expenses of construction of sewer before land became a street ”; and
- (iii) that the disposal of such portion of the land was effected with the intention and for the purpose of the

evasion of the payment of expenses under the said section of this Act;

PART III.
—cont.

then the court shall order that such expenses shall be apportioned on the land which immediately before the date of such conveyance sale lease or disposal included the land so conveyed sold leased or disposed of and thereafter such expenses may be recovered from the owner of any part of that land on which a new building within the meaning of the last preceding section of this Act is erected and shall be a charge on any such part of that land and on all estates and interests therein to the same extent and in the same manner as any sum apportioned under the said section of this Act of which the marginal note is "Apportionment to frontagers of expenses of construction of sewer before land became a street" may be recovered and is charged on the premises under the said last-preceding section of this Act.

PART IV.

SMOKE ABATEMENT.

26.—(1) No person shall instal in any building whether erected before or after the passing of this Act any furnace for steam raising or for any manufacturing or trade purpose unless such furnace is so far as practicable capable of being operated continuously without emitting smoke.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding ten pounds and any person who after conviction of an offence of installing a furnace in contravention of those provisions uses that furnace shall unless it has been amended so as to comply with those provisions be liable to a penalty not exceeding two pounds for each day on which he so uses the furnace.

(3) If any person before installing in any building a furnace to which this section applies submits to the Corporation plans and specifications of the proposed furnace and furnishes them with such other necessary information with regard thereto as the Corporation may require the Corporation shall within a period of six weeks from the date on which such plans and specifications are received by them serve a notice upon such person stating whether they are or are not satisfied that the furnace is so far as practicable capable of being operated continuously without emitting smoke and if they are so satisfied or if they do not serve a notice upon such person before the expiration of the said period of six weeks no proceedings shall be taken against him under this section in respect of the installation of that furnace in accordance with the plans specifications and information so submitted and furnished.

PART IV.
—cont.

(4) Before serving a notice under this section stating that they are not satisfied that the furnace is so far as practicable capable of being operated continuously without emitting smoke the Corporation shall consult with the Minister of Fuel and Power.

(5) In determining for the purposes of this section whether a furnace is so far as practicable capable of being operated continuously without emitting smoke the Corporation or a court shall if either of the parties so desire have regard to cost and to local conditions and circumstances.

Smokeless
zones.

27.—(1) The Corporation may by order to be confirmed by the Minister prohibit the emission of smoke from any premises in any area or areas within the city which may be prescribed in such order.

(2) Before submitting an order under subsection (1) of this section to the Minister the Corporation shall publish in the London Gazette and in one or more local newspapers circulating in the city a notice—

- (a) stating that such an order has been made and is about to be submitted to the Minister for confirmation;
- (b) stating the general effect of the order;
- (c) describing the area or areas to which the order applies; and
- (d) stating that within the period of twenty-eight days after a date named in the notice not being earlier than the first publication thereof any person may object to the confirmation of the order by giving notice in writing to the Minister and sending a copy of such notice to the town clerk.

(3) If no objection is duly made or if all objections so made are withdrawn then the Minister may if he thinks fit confirm the order with or without modification but in any other case he shall before confirming the order cause a local inquiry to be held and shall consider any objection not withdrawn and the report of the person who held the inquiry and may then confirm the order either with or without modification.

(4) An order made under the foregoing provisions of this section may—

- (a) in relation to any premises specified in the order—
 - (i) provide that the premises shall be excluded from the area;
 - (ii) provide that the operation of the order to the premises shall be deferred for such period as may be specified;

(b) provide that the operation of the order to premises used for any of the following processes shall be deferred for such period as may be specified or such premises may be excluded from the operation of the order:—

- (i) the working of a mine;
- (ii) the smelting of ores and minerals;
- (iii) the calcining puddling and rolling of iron and other metals; and
- (iv) the conversion of pig iron into wrought iron or the reheating annealing hardening forging converting and carburising of iron and other metals:

Provided that no premises shall be excluded from the operation of the order on the ground that they are used for any of the said processes unless the Minister is satisfied that the inclusion of the premises within the operation of the order would obstruct or interfere with any such processes.

(5) An order made under this section shall come into operation on but not until such date as may be specified in the order which shall be not less than six months after the date of the first publication of the notice of the confirmation of the order.

(6) The occupier of any premises from which smoke is emitted in contravention of the provisions of an order made under this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds.

(7) So soon as may be after an order made under this section has been confirmed by the Minister the Corporation shall publish in one or more local newspapers circulating in the city a notice stating that the order has been confirmed and naming a place where a copy of the order as confirmed may be seen at all reasonable hours and shall serve a like notice on every person who having given notice to the Minister of his objection to the order appeared at the public inquiry in support of his objection.

(8) A copy of a newspaper containing a notice published in pursuance of this section shall be sufficient evidence of the publication of the notice.

(9) An order under this section may contain such provisions as the Minister may think expedient—

- (a) for enabling the lessee or tenant of any premises within the area to which the order relates who has to incur expense in executing works or providing altering or adapting any fixtures fittings or appliances for the purpose of complying with the order and the owner

PART IV.
—cont.

of such premises to enter into and fulfil agreements making such variations of the terms of the lease or tenancy of the premises as may be reasonable having regard to the expense to be incurred and to other relative circumstances; and

- (b) for enabling any such lessee or tenant who has been unable to make an agreement with the owner thereof under paragraph (a) of this subsection to apply to the county court for an order making such variations of the terms of the lease or tenancy of the premises as aforesaid and for enabling the court to make such an order.

(10) An order under this section may be varied or revoked by another order made by the Corporation and confirmed by the Minister.

(11) Nothing in this section or in an order made thereunder shall apply to smoke emitted from a railway locomotive.

(12) The Corporation may if they think fit contribute the whole or part of the expense necessarily incurred by any person in executing works or in providing altering or adapting any fixtures fittings or appliances for the purpose of complying with the provisions of any order made by the Corporation and confirmed by the Minister under this section.

PART V.

SALE OF COKE COAL &C.

Application
to sale of coke
of Weights and
Measures Act
1889.
52 & 53 Vict.
c. 21.

Penalty on
fraudulent
sale.

Requirements
as to vehicles
carrying coal
or coke for
sale or
delivery on
sale.

28. The provisions of sections 20 to 29 inclusive of the Weights and Measures Act 1889 as amended by this Part of this Act and of any byelaws made by the Corporation thereunder (which provisions and byelaws relate to the sale of coal) shall also apply to the sale of coke within the city.

29. If any seller of coke or any person in charge of any vehicle from which coke is being sold or offered or exposed for sale wilfully makes any false statement as to the weight of the coke or wilfully increases such weight by damping such coke or wilfully does any other act by which the purchaser of the coke shall be defrauded such seller or person in charge shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds.

30.—(1) Every vehicle carrying coal or coke for sale or for delivery on sale shall have the seller's name and place of business clearly marked and visible on such vehicle.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds.

31. Proviso (a) to section 27 of the Weights and Measures Act 1889 in its application to the city shall be read and have effect as if in that proviso the words "one and a half miles" were substituted for the words "half a mile."

Amendment of section 27 of Weights and Measures Act 1889 in its application to city.

32.—(1) Any person selling or intending to sell or exposing for sale coal or coke from or on a vehicle otherwise than in sacks and not carrying on such vehicle a weighing instrument of a type approved by the Corporation and stamped by an inspector of weights and measures shall sell at one time only the whole load of such coal or coke on such vehicle and shall before leaving the place at which the coal or coke was loaded be furnished with a ticket or note stating the gross tare and net weight of such load and shall produce such ticket or note to any inspector of weights and measures or other officer appointed for the purpose by the Corporation on demand and shall deliver such ticket to the purchaser or his servant before any part of the coal or coke is unloaded.

As to sale of coal or coke otherwise than in sacks from a vehicle.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds.

33.—(1) Where—

(a) any quantity of coal or coke exceeding two hundredweight is delivered by means of any vehicle to a purchaser; or

(b) any person sells or intends to sell or exposes or offers for sale coal or coke from or on any vehicle in quantities exceeding two hundredweight;

As to sale in sacks of coal or coke in quantities exceeding two hundredweight.

and such coal or coke is carried on such vehicle in sacks the nett weight of coal or coke in any one sack shall be equal to one of the following weights (that is to say):—

two hundredweight;

one hundredweight;

one-half of a hundredweight;

one-quarter of a hundredweight;

and each sack shall be legibly marked so as to show the nett weight of coal or coke carried in such sack and a weighing instrument of a type approved by the Corporation and stamped by an inspector of weights and measures shall be carried on such vehicle.

(2) If default is made in complying with any of the requirements of subsection (1) of this section or the nett weight of coal or coke in any such sack is less than the weight shown thereon or stated in the ticket or note referred to in section 21 of the Weights and Measures Act 1889 the seller of the coal or coke and the person responsible for loading the coal or

PART V.
—cont.

coke on such vehicle and the person in charge of such vehicle shall severally be liable to a penalty not exceeding five pounds.

(3) In addition to the matters which in accordance with the said section 21 and the Third Schedule to the said Act of 1889 are required to be stated on the ticket or note referred to in that section there shall in all cases in which subsection (1) of this section applies be stated on such ticket or note the number of sacks carried on the vehicle to which the ticket or note refers and the nett weight of coal or coke in each of such sacks and the said section 21 in its application to the city shall be read and have effect accordingly.

Application of
Part V of Act.

34. The provisions of this Part of this Act relating to coke shall apply to any solid fuel derived from coal or of which coal or coke is a constituent as if it were coke.

Notice of
Part V of Act.

35. Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in a newspaper published or circulating in the city.

No evidence shall be required in any proceedings that the provisions of this section have been complied with.

Repeal.

10 & 11 Geo. 5.
c. cxlviii.

36. Part XXIII (Sale of coke) of the Salford Corporation Act 1920 shall be and is hereby repealed.

PART VI.

FINANCIAL.

Power to
borrow.

37.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 from time to time to borrow without the consent of any sanctioning authority the sum or sums requisite for the payment of the costs charges and expenses of this Act as hereinafter defined and they shall pay off all moneys so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

Capital fund.

38.—(1) The Corporation may establish a fund to be called "the capital fund" to which they may pay any sums derived

from the sale of any property of the Corporation the balance of the general rate fund in hand on the thirty-first day of March in any year or any part of such balance and such other sums from the general rate fund (including a sum equal to the interest earned on the capital fund and the income (if any) arising from the application of the fund to the purposes authorised) as the Corporation may by resolution direct not being moneys directed by law to be applied to any other purpose;

Provided that—

- (a) any sum directed by the Corporation to be paid to the capital fund from the general rate fund (in addition to the sum equal to the interest earned on the capital fund and the income (if any) arising from the application of the fund to the purposes authorised) shall not except with the consent of and to such extent as may be approved by the Minister exceed in any year the equivalent of four times the product of a penny rate as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act 1925; and 15 & 16 Geo. 5.
c. 90.
- (b) payments into the capital fund shall cease to be made whenever that fund amounts to one hundred thousand pounds or such larger amount as may from time to time be approved by the Minister.

(2) The Corporation may apply the moneys in the capital fund in defraying any expenditure to which capital is properly applicable other than expenditure in connection with the transport gas or water undertaking of the Corporation or in providing money for payments into sinking funds in respect of loans raised under any statutory borrowing power other than a statutory borrowing power in respect of any such undertaking (but not in making the annual payment required to be made thereto) or in the purchase or acquisition or taking on lease of any lands or buildings which they are authorised to purchase or acquire or take on lease under section 32 (Further powers for the acquisition of lands) of the Act of 1933. Provided that the amount to be expended under this subsection shall not exceed ten thousand pounds in any one transaction unless a larger amount shall in any case be allowed by the Minister.

(3) (a) Pending the application of the capital fund to the purposes authorised in the foregoing subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the capital fund in the manner provided by the foregoing

PART VI.
—cont.

paragraph of this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund.

(4) All moneys derived from the sale of any land of the Corporation which are applied from the capital fund under the provisions of this section shall and all other moneys which are applied from the capital fund under those provisions may if the Corporation think fit be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Corporation:

Provided that where the advance is in the exercise of a statutory borrowing power such period shall not exceed the period prescribed for the repayment of moneys borrowed under that power.

(5) If and when the Corporation establish a capital fund under this section section 120 (Capital reserve fund) of the Act of 1933 shall cease to have effect and any moneys standing to the credit of the capital reserve fund established under the said section 120 shall be carried to and form part of the fund established under this section.

Increase of
annual
appropriations
to and
maximum
amounts of
renewal and
repairs fund
capital reserve
fund and art
fund.

39. Notwithstanding anything contained in section 119 or section 120 or section 121 of the Act of 1933 the maximum annual amounts which in accordance with those sections the Corporation may respectively apply or appropriate out of the general rate fund or the proceeds of the general rate to the renewal and repairs fund or the capital reserve fund or the art fund respectively authorised by those sections and the respective maximum amounts which may be accumulated in those funds before the Corporation are required to discontinue or cease such annual applications or appropriations may be increased with the consent of and to such extent as may from time to time be approved by the Minister:

Provided that as on and from the establishment of a capital fund under and in accordance with the section of this Act of which the marginal note is "Capital fund" this section shall be read and have effect as if the references therein to the said section 120 and to the capital reserve fund authorised by that section were omitted from this section.

As to exten-
sions of time
for repayment
of and altera-
tion of rates
of interest on
mortgages of
Corporation.
63 & 64 Vict.
c. ccxx.

40. Notwithstanding anything contained in section 34 (Mortgages to be charged on all funds &c. of Corporation) of the Salford Corporation Act 1900 or in the Fifth Schedule to that Act or in any other enactment or in any rule of law or otherwise to the contrary where it is agreed between the Corporation and the person for the time being entitled to any mortgage granted by the Corporation to extend the time for the repayment of the principal moneys secured by such mortgage or to alter the rate of interest payable by the Corporation

on the principal moneys so secured and for the time being not repaid or both to extend such time and to alter such rate of interest effect may be given thereto by an endorsement in writing under the hands of such person and of the town clerk or his duly authorised representative endorsed on the deed by which such mortgage was originally granted and the provisions of any such endorsement shall be deemed to be incorporated in the said deed and shall as from the date specified in such endorsement operate and take effect accordingly.

PART VI.
—cont.

41. The Corporation may pay out of the general rate fund and general rate—

Payment of expenses on occasion of public entertainments &c.

(a) the reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the city; and

(b) in connection with the presentation of the freedom of the city to persons whom the Corporation may resolve to admit as honorary freemen.

PART VII.

MISCELLANEOUS.

42. The Corporation may levy and recover such charges as they think fit for taking at the request of and for the convenience of any consumer at a time other than that of the periodical meter readings the reading of any gas or water meter fixed in any premises. Provided that such charges shall not exceed the sum of two shillings and sixpence for each reading of a gas meter or one shilling for each reading of a water meter.

Charges for special readings of gas and water meters.

43. For the removal of doubts it is hereby declared that the expression "owner" where used in section 44 (Rates may be recoverable from owner where they are included in rent) of the Salford Corporation Act 1938 has the same meaning as is assigned to that expression by section 68 of the Rating and Valuation Act 1925.

Definition of "owner" in section 44 of Salford Corporation Act 1938. 1 & 2 Geo. 6. c. xcvi.

44. As from the date of the passing of this Act section 102 (Annuities for widows) of the Act of 1933 shall be read and have effect in relation to any officer or servant who after such date gives any such notice as is referred to in subsection (1) of that section as if the words "twelve per centum" were substituted in paragraph (a) of that subsection for the words "eleven per centum".

Increase in initial reduction of superannuation allowance in respect of annuities of widows.

PART VII.
—cont.Provision of
lectures, &c.,
in libraries,
&c.38 & 39 Vict.
c. ci.

45.—(1) The Corporation may use or allow to be used or let any part of any public library art gallery or museum provided by them or for the time being belonging to them or under their control for lectures exhibitions concerts displays and the performance of stage plays for or in connection with the advancement of art education drama science music or literature and may themselves provide or arrange for the provision of or contribute towards the expenses of any such lectures exhibitions concerts displays or stage plays and may make or allow to be made such charges as they may think fit in connection therewith and so much of section 101 (Museums and libraries may be closed on special occasions) of the Salford Tramways and Improvement Act 1875 as requires the Corporation to give notice of the closing of the whole or any part of any museum or library under their control and to admit individuals without payment to any such museum or library or any part thereof on such occasions as are mentioned in that section shall not apply where any public library art gallery or museum is used or allowed to be used or let pursuant to this section:

Provided that no cinematograph film of which—

(a) the length exceeds two thousand four hundred feet;
or

(b) the width exceeds sixteen millimetres

shall be exhibited under the powers of this section.

(2) The Corporation may provide and sell or authorise the provision and sale of programmes of any lectures exhibitions concerts displays or stage plays given in pursuance of this section.

(3) Nothing in this section shall be taken to dispense with the consent of the Minister of Education to any appropriation lease or other disposition of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted.

(4) No power conferred upon the Corporation by this section shall be exercised in such a manner as to be at variance with any trust subject to which any lands or buildings are held managed or controlled by the Corporation without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of such donor or other person.

(5) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or for a cinematograph exhibition.

(6) All money received by the Corporation in the exercise of the powers of this section after defraying the expenditure incurred under this section shall be applied only for the purposes of the advancement of art education drama science music or literature.

46. When any portion of any park or place of public resort or recreation is set apart by the Corporation for any purpose under section 76 of the Public Health Acts Amendment Act 1907 the Corporation may permit the exclusive use by any club or other body or persons of any part of any park or place of public resort or recreation set apart as aforesaid and of any pavilions buildings or refreshment or other rooms or conveniences subject to such charges and conditions as the Corporation may think fit:

Charges for
and letting of
parks &c. for
games.

Provided that nothing in this section shall empower the Corporation to permit at one and the same time the exclusive use of more than one-half of the area of any park or place of public resort or recreation for the time being belonging to them or under their control or more than one-quarter of the total area of all such parks and places.

47.—(1) No dealer shall sell or expose for sale or deposit in or on any premises for the purposes of sale or exposure for sale any second-hand clothing furniture mattresses bed linen or similar articles if the same are to his knowledge infested with lice bugs or other vermin or if by taking reasonable precautions he could have known the same to be so infested.

Prohibition on
sale of
verminous
clothing or
furniture.

(2) Any dealer offending against the provisions of this section shall be liable to a penalty not exceeding five pounds.

(3) Where the Corporation are satisfied upon a report by the medical officer or the sanitary inspector that any second-hand clothing furniture mattresses bed linen or articles which have been sold and are awaiting collection or delivery or are exposed for sale or deposited for the purposes of sale or exposure for sale are infested with lice bugs or other vermin they may serve notice on the dealer by whom such clothing furniture mattresses bed linen or articles were sold or are exposed for sale or deposited for the purposes of sale or exposure for sale or if the dealer is not the occupier of the premises in which the same are awaiting collection or delivery or are so exposed or deposited on such occupier requiring such dealer or occupier as the case may be to take such steps—

(a) to prevent other clothing furniture mattresses bed linen or similar articles from becoming so infested; and

(b) to cleanse disinfect and whitewash such premises; as may be specified in the notice:

Provided that any such occupier shall be entitled to recover from the dealer by whom such clothing furniture mattresses

PART VII.
—cont.

bed linen or similar articles were sold or are exposed or deposited as aforesaid the reasonable expenses incurred by such occupier in complying with any such requirement:

Provided also that if any such occupier so elects and gives to the Corporation notice in writing of such election forthwith after the receipt of any such requirement as aforesaid the Corporation shall in lieu of such occupier be at liberty to take such steps as may be necessary to comply with such requirement.

(4) (a) If any dealer on whom a notice is served under subsection (3) of this section fails within seven days after the receipt of such a notice to comply with the requirements thereof he shall be liable to a penalty not exceeding five pounds.

(b) Without prejudice to the right of the Corporation to take proceedings under paragraph (a) of this section the Corporation may—

(i) in any such case as is referred to in that paragraph;
or

(ii) if the occupier gives to the Corporation any such notice of election as is referred to in the second proviso to the immediately foregoing subsection of this section;

themselves carry out such requirements and recover the expenses reasonably incurred by them in so doing from the dealer by whom such clothing furniture mattresses bed linen or articles were sold or exposed or deposited as aforesaid.

(c) Provided that in any proceedings under this section it shall be open to the defendant to question the reasonableness of the requirements of the Corporation.

(5) In this section the expression “dealer” means any person who trades in second-hand clothing furniture mattresses bed linen or similar articles for reward as part of his trade or business.

Amendment of
provisions as
to licensing of
drivers of
hackney
carriages.
25 & 26 Vict.
c. ccv.
45 & 46 Vict.
c. xcvi.

48.—(1) Section 299 (Drivers &c. not to act without first obtaining a licence) of the Salford Improvement Act 1862 as amended by article VIII of the Provisional Order scheduled to and confirmed by the Local Government Board's Provisional Order Confirmation (No. 8) Act 1882 shall as from the commencement of this section be read and have effect as if the words “not exceeding two shillings and six pence” were substituted in that section as so amended for the words “one shilling.”

(2) The Corporation may refuse to grant a licence for which application is made to them pursuant to the said section 299 if in their opinion such licence should not be granted.

(3) If the Corporation refuse to grant any such licence as aforesaid they shall if required by the applicant send or deliver to him within seven days from the receipt by the town clerk of such requirement particulars in writing of the grounds for such refusal.

(4) The power conferred upon the Corporation by the said article VIII of granting licences to the drivers of hackney carriages for shorter periods than twelve months on days on which races are held in the city shall be extended so as to enable the Corporation to grant such licences for such shorter periods as aforesaid on all such occasions as they think fit.

49.—(1) The Corporation may refuse to grant or renew a licence for which application is made to them under section 326 (Brokers to be licensed) of the Salford Improvement Act 1862 or may at any time revoke or vary a licence granted under that section on account of the misconduct of the applicant or licensee or if for any other sufficient reason he is in their opinion unsuitable to hold such a licence. Further powers with regard to brokers' licences.

(2) If the Corporation refuse to grant or renew a licence or revoke or vary a licence under this section they shall if required by the applicant or holder (as the case may be) send or deliver to him within seven days from the receipt by the town clerk of such requirement particulars in writing of the grounds of such refusal revocation or variation.

(3) As from the commencement of this section section 336 (Act not to extend to pawnbrokers) of the said Act of 1862 shall be read and have effect as if the words " and whose chief or principal occupation or business shall not be the dealing therein " were omitted from that section.

50.—(1) There shall be paid out of the general rate fund to the stipendiary justice for the city appointed under and in accordance with the provisions of the Manchester Division and Borough of Salford (Stipendiary Justices) Act 1878 (in this section referred to as " the Act of 1878 ") such salary as the Corporation may with the approval of the Secretary of State from time to time determine. As to salary of stipendiary justice. 41 & 42 Vict. c. lv. Provided that the Corporation shall not after the appointment of any person to the office of stipendiary justice for the city reduce the salary of such person without his consent.

(2) The provisions of this section shall notwithstanding anything contained in the Act of 1878 apply in relation to the person holding the said office at the date of the passing of this Act:

Provided that nothing in this section shall require the approval of the Secretary of State to the payment to such person of the salary which immediately before the date of the passing of this Act was paid to him.

PART VII.
—cont.

(3) Section 42 (Salary of stipendiary justice for the borough) of the Act of 1878 shall be and is hereby repealed.

As to personal
weighing
machines.

51.—(1) In this section the expression “personal weighing machine” means any weighing machine which is used or exposed for use for the purpose of ascertaining the weight of a person—

(a) for the use of which a charge is made; or

(b) which is kept in any shop premises or place in the city to which the public have access.

(2) The owner or the person in charge of any personal weighing machine which is false or unjust shall be liable to a penalty not exceeding two pounds or in the case of a second or any subsequent offence five pounds.

(3) A personal weighing machine shall not be used or exposed for use unless it has been examined and approved by an inspector of weights and measures of the Corporation and has been marked with a distinguishing mark by such inspector and after the expiration of twelve months from the commencement of this section every person who has in his possession or under his control any personal weighing machine which is not so marked shall be liable to a penalty not exceeding two pounds or in the case of a second or subsequent offence five pounds and the machine shall be liable to be forfeited:

Provided that the provisions of this subsection shall not apply to a personal weighing machine in the possession or under the control of a travelling showman and used or exposed for use by him at a pleasure fair if at any time within the three months preceding such use or exposure for use such weighing machine has been examined and approved and marked by an inspector of weights and measures appointed by any local authority under the Weights and Measures Acts 1878 and 1889.

(4) If any person forges or counterfeits or removes any such distinguishing mark as is referred to in the last preceding subsection or knowingly exposes for use any personal weighing machine without any such mark or with such forged or counterfeit mark thereon he shall be liable to a penalty not exceeding five pounds and the machine shall be liable to be forfeited.

(5) (a) Any inspector of weights and measures of the Corporation may at all reasonable times inspect and examine any personal weighing machine in the city and may seize and detain any such machine which is liable to be forfeited under the provisions of this section and may for the purposes of such inspection and examination enter any place (whether open or

closed) where there is reasonable cause to believe that there is a personal weighing machine which he is authorised to inspect and examine.

(b) Any person who neglects or refuses to produce for such inspection any personal weighing machine in his possession or on his premises or refuses to permit any such inspector of weights and measures to examine the same or obstructs the entry of such inspector or otherwise obstructs or hinders him from acting under this section shall be liable to a penalty not exceeding five pounds or in the case of a second or any subsequent offence ten pounds.

(6) The Corporation may make byelaws—

(a) generally with respect to the examination and inspection of personal weighing machines and the distinguishing marks to be fixed to personal weighing machines under this section and the circumstances and conditions in and under which such marks may be affixed or cancelled;

(b) with respect to the tests to be applied for the purposes of ascertaining the accuracy and efficiency of personal weighing machines;

(c) for fixing the fees to be paid to the Corporation for the examination approval and marking of personal weighing machines under this section or for the examination of such personal weighing machines as are found to be incorrect or defective;

(d) for fixing the limits of error to be allowed on examination and approval or on inspection and examination of any personal weighing machine under this section.

52. Where under the provisions of this Act or any local Act in force in the city the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportionment of expenses in cases of joint owners.

53. Whenever under any public general Act from time to time in force in the city (other than the Public Health Act 1936) or under any local enactment (other than section 72 (Dilapidated and neglected buildings) of the Act of 1933 Part III (Streets and buildings) and section 40 (Disused petroleum receptacles) of the Salford Corporation Act 1938 and the provisions of this Act) the Corporation on the application or in consequence of the default of the owner or occupier of any

Power to charge supervision in addition to costs.

PART VII.
—cont.

premises execute any work the cost of which is payable by such owner or occupier the Corporation may include in and recover as part of such cost such additional sum not exceeding five per centum of the cost of the works as they think fit in respect of their establishment charges.

PART VIII.

GENERAL.

As to appeals.

54.—(1) Any person aggrieved by any requirement refusal or other decision of the Corporation or of any officer thereof under Part III (Streets buildings sewers &c.) of this Act or under either of the sections of this Act of which the marginal notes are respectively “ Amendment of provisions as to licensing of drivers of hackney carriages ” and “ Further powers with regard to brokers’ licences ” may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the Corporation with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other

decision or to use any premises for any purpose for which they were lawfully used up to such time—

- (a) no proceedings in respect of any failure to execute the work or take the action shall be taken;
- (b) the Corporation shall not execute such work or take such action; and
- (c) any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or has been withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

55. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Local Government Act 1933 shall be— Confirming authority for byelaws.

- (a) in the case of byelaws made under the section of this Act of which the marginal note is "Development and use of lands acquired under this Act" the Secretary of State; and
- (b) in the case of byelaws made under the section of this Act of which the marginal note is "As to personal weighing machines" the Board of Trade.

56.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the Corporation of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the city. Commencement of certain provisions of this Act.

Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month after the date of publication of the advertisement:

Provided that if the provision is one which requires the licensing of any person or premises the application for the licence may be made and determined before the provision comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

PART VIII.

—cont.

(3) This section shall apply to subsection (3) of the section of this Act of which the marginal note is "Further powers with regard to brokers' licences" and the sections of this Act of which the marginal notes are respectively—

"Amendment of provisions as to licensing of drivers of hackney carriages"; and

"As to personal weighing machines."

(4) As respects any of the said provisions which requires the licensing of persons carrying on any business or of premises used for any purpose it shall be lawful for any person who when such provision came into operation—

(a) was carrying on any such business or using any premises for any such purpose; and

(b) had made application in accordance with the provisions of this Act for such licensing as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of the section of this Act of which the marginal note is "As to appeals."

Damages and charges to be settled by court.

57. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Restriction on right to prosecute.

58. Section 298 (Restriction on right to prosecute) of the Public Health Act 1936 shall apply to offences created by or under Part III (Streets buildings sewers &c.) and Part IV (Smoke abatement) of this Act and the section of this Act of which the marginal note is "Prohibition on sale of verminous clothing or furniture" as if they were offences created by or under that Act.

Inquiries.

59. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and section 290 of the Local Government Act 1933 shall apply accordingly.

Application of provisions of Public Health Act 1936.

60. The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

Section 277 (Power of councils to require information as to ownership of premises);

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 286 (Proof of resolutions &c.);

Section 287 (Power to enter premises);

Section 288 (Penalty for obstructing execution of Act);

Section 289 (Power to require occupier to permit works to be executed by owner);

Subsections (2) to (4) of section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);

Section 292 (Power to make a charge in respect of establishment expenses);

Section 293 (Recovery of expenses &c.);

Section 295 (Power of local authority to grant charging orders);

Section 296 (Summary proceedings for offences);

Section 297 (Continuing offences and penalties);

Section 304 (Judges and justices not to be disqualified by liability to rates);

Section 328 (Powers of Act to be cumulative);

Section 329 (Saving for certain provisions of the Land Charges Act 1925):

Provided that the said sections 277 287 288 289 291 292 295 and 329 shall only apply to the provisions contained in Part III (Streets buildings sewers &c.) Part IV (Smoke abatement) and Part VII (Miscellaneous) (other than the section of this Act of which the marginal note is "As to personal weighing machines") of this Act.

61. Nothing contained in this Act shall extend or operate to authorise the Corporation to take use enter upon or in any manner interfere with any land soil water or any manorial rights or any other rights of whatsoever description belonging to His Majesty in right of His Duchy of Lancaster without the consent in writing of the chancellor for the time being of the said duchy first had and obtained (which consent the said chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exercise-able by His Majesty His Heirs or Successors in right of His said Duchy. Saving rights of Duchy of Lancaster.

PART VIII.

—cont.

Saving for
town and
country
planning.

Costs of Act.

62. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

63. All costs charges and expenses of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULE referred to in the foregoing Act.

Alterations and extensions to be deemed to be the erection of a new building—

1. The re-erection wholly or partly of any building of which an outer wall is pulled down otherwise than in consequence of fire or other accident to such a distance that the part of the wall remaining (if any) is less than half the previous height of the building the height being measured from the ground level to the highest point of the building;

2. The conversion into a dwelling-house of any building not originally constructed for human habitation;

3. The conversion of any premises into a factory workshop or place of public resort;

4. Any extension by reason whereof the area occupied by the site of the building will with any previous extension made since the date on which any such street as is referred to in the section of this Act of which the marginal note is "Apportionment to frontagers of expenses of construction of sewer before land became a street" was laid out be increased by an area equal to more than one-eighth or in the case of a building constructed for agricultural purposes one-quarter of that occupied by the site of the building before that date.

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